

02:00 PM **LINE 7**

25-CIV-08271

KIRSTEN BOLLEN ARPAJIAN VS. SCOTT LOEWEN ARPAJIAN

KIRSTEN BOLLEN ARPAJIAN
SCOTT LOEWEN ARPAJIAN

ETHAN M. WEISINGER
LUIS M MONTES

Motion re California Court's Jurisdiction re Spanish Divorce Decree

TENTATIVE RULING:

Petitioner Kristen Bollen Arpajian's petition to domesticate the Barcelona divorce decree is **DENIED without prejudice**. As noted below, the court will enforce orders issued by the court in Barcelona if requested by that court pursuant to appropriate international legal assistance requests.

Specially-appearing respondent Scott Arpajian seeks judicial notice of certain documents filed in this court and the court in Barcelona pursuant to Evidence Code, sections 452, subdivisions (d) and (h), 453, and 1530, subdivision (a)(1). Where the original documents were in Spanish, respondent has supplied English-language translations. Petitioner has not opposed the request. Accordingly, respondent's request is **GRANTED in part**. The court takes judicial notice of exhibits A-D, F-G, K, M (Barcelona court's orders); E (San Mateo Superior Court ruling); H-J (parties' filings in Barcelona court).

The court takes judicial notice of the legal effect of the Barcelona court's orders. The court takes judicial notice of the fact that exhibits H-J were filed by the parties with the Barcelona court, but they are not noticed for the truth of the contents therein. The court does not take judicial notice of exhibit L, the "Legal Report of Respondent's Spanish legal counsel Carolina Cendros Camara."

Petitioner Kristen Arpajian and specially-appearing respondent Scott Arpajian were married in San Francisco in 2002 and divorced in Spain in 2022. Neither party disputes that their divorce decree was issued by a court of competent jurisdiction in Barcelona, Spain. Nor does there appear to be any dispute that Mr. Arpajian has lived in Spain for many years. The proof of service filed by Ms. Arpajian indicates that Mr. Arpajian was personally served with the petition in this matter in Barcelona. Neither party has addressed whether he has had sufficient contacts with California to permit the court to exercise personal jurisdiction over him for purposes of this petition.

Petitioner asks this court to "domesticate" their divorce decree; respondent opposes. The court asked the parties for briefing regarding this court's jurisdiction over the Spanish divorce decree.

Petitioner argues that the “Uniform Foreign-Country Money Judgments Recognition Act,” Code of Civil Procedure, sections 1713, et seq., authorize this court to domesticate and enforce the Spanish judgment. In a “domestication” action, the petitioner seeks “entry of a California judgment for the amount of the foreign judgment.” (*Manco Contracting Co. (W.L.L.) v. Bezdikian* (2008) 45 Cal.4th 192, 208 (*Manco*)). A domesticated judgment gives the judgment creditor access to the full range of enforcement procedures available under California law. (See *ibid.*)

Code of Civil Procedure, section 1715, subdivision (a) provides that “[t]his chapter applies to a foreign-country judgment to the extent that the judgment both: (1) Grants or denies recovery of a sum of money. (2) Under the law of the foreign country where rendered, is final, conclusive, and enforceable.” Subdivision (b) provides that “(b) This chapter does not apply to a foreign-country judgment, even if the judgment grants or denies recovery of a sum of money, to the extent that the judgment is any of the following: * * * (3)(A) A judgment for divorce, support, or maintenance, or other judgment rendered in connection with domestic relations.” However, “[a] judgment for divorce, support, or maintenance, or other judgment rendered in connection with domestic relations may be recognized by a court of this state pursuant to Section 1723.” (*Id.*, § subd. (3)(B).) The burden is on the proponent to establish that the judgment is entitled to recognition. (*Id.*, § subd. (c).) Section 1723 provides that “[t]his chapter does not prevent the recognition under principles of comity or otherwise of a foreign-country judgment not within the scope of this chapter.” Instead, “[c]omity remains the basis for recognizing foreign judgments not covered by the [Uniform Foreign Money–Judgments Recognition Act (UFMJRA)], such as domestic relations judgments.” (*Manco, supra*, 45 Cal.4th at p. 198, citing Code Civ. Proc., §§ 1715, subd. (b)(3), 1723.)

Although not addressed in petitioner’s brief, respondent notes in his brief, and the attached exhibits show that the Barcelona court issued an order on December 2, 2025 (Resp. RJN, exh. K), which affirmed an October 27, 2025 order (*id.*, exh. M) enforcing a portion of the divorce award. Specifically, the Barcelona court ordered petitioner Kristen Arpajian to pay to respondent Scott Arpajian €255,000 and to release Scott Arpajian from a mortgage on a ranch the parties had jointly owned in California. (The October 27, 2025 order refers to \$255,000 plus \$75,000 as security for interest payments; the December 2, 2025 order refers to €255,000.) The Barcelona court further stated that any appeal had to be filed with the provincial court within twenty days following the date of service. Neither party has advised the court whether any appeal is pending.

That the Barcelona court is continuing to exercise jurisdiction over enforcement of the parties’ divorce decree demonstrates that this court should not exercise jurisdiction in this matter, even assuming that petitioner could demonstrate that respondent had sufficient minimum contacts with California to permit the court to exercise personal jurisdiction over Mr. Arpajian. The court is particularly concerned not to interfere with the Barcelona court’s jurisdiction as to enforcement actions.

However, if the court in Barcelona requires the assistance of this court, this court will comply with any appropriate request. This court presumes that the Barcelona court will avail itself of international legal assistance procedures either through a Letter of Request pursuant to

the Hague Evidence Convention (Convention of 18 March 1970 on the Taking of Evidence Abroad in Civil or Commercial Matters), or letters rogatory as appropriate. Otherwise, this court declines to insert itself into a matter that appears to be under the continuing jurisdiction of a foreign court.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, Scott Arpajian's counsel shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.

02:00 PM **LINE 8**

25-CIV-08668

WEI FANG CHEN , ET AL VS. DAKSH CHAPLOT, ET AL

WEI FANG CHEN
DAKSH CHAPLOT

ROBERT CHEASTY
SHAYNE L. WULTERIN

Defense Motion to Strike Portions of the Complaint

TENTATIVE RULING:

Defendant Hertz Vehicles, LLC's motion has been withdrawn and the matter is therefore **MOOT.**
